

Notice of Resident(s) Intent to Vacate

From: _____
(Residents)

To: _____
(Owner/Agent for Owner)

Address of rental property: _____
(Address)

Unit _____, (if applicable) _____, California _____ ("Premises")
(City) (Zip)

Please take notice that all Residents stated above and all other occupants will be terminating the tenancy and vacating the Premises on or before _____, 20_____ ("Termination Date")

Residents understand that Premises must be fully vacated (persons and property) and all keys returned to Owner/Agent or Resident will remain liable for all rent and other terms of the rental agreement until actual possession of the Premises is given to Owner/Agent. This Notice is meant to be a formal written Notice of Intent to Vacate as required by California Civil Code Section 1946 and/or pursuant to the terms of the rental agreement between Residents and Owner/Agent. As such, said Termination Date constitutes a firm date that Owner/Agent can rely upon to be returned possession of the Premises. Owner/Agent may use this Termination Date to pursue Owner/Agent's legal remedies against Residents if Premises are not fully vacated and keys returned by Termination Date.

Residents understand that all rent and other charges agreed upon under the rental agreement are due and payable up through the Termination Date or the date of actual possession of the Premises (whichever is later). Residents understand that the rental amount shall be pro-rated through the Termination date. Residents further understand that the security deposit may not be used to pay for the last month's rent.

Preliminary Move-out Inspection Notice: Residents understand and have been hereby notified pursuant to Ca. Civil Code Section 1950.5 that they have an option to request an initial inspection of the Premises by Owner/Agent to occur within the two weeks prior to their Termination Date and they have a right to be present at this inspection. At this pre move-out inspection, Owner/Agent will provide Residents with a check-list of repairs/deficiencies that Residents will have an opportunity to cure (pursuant to the terms of the rental agreement) prior to Owner/Agent's final inspection, in an effort to avoid deductions from Residents' security deposit. If Residents request this pre move-out inspection, Owner/Agent will give Residents at least 48 hours' prior written notice of the date and time of the inspection. Owner/Agent may proceed with inspection even if Residents are not present unless Residents previously withdraw the request.

Pursuant to California law, Owner/Agent may show the Premises to potential tenants after giving Residents reasonable notice, or at least 24 hours notice. Furthermore, Owner/Agent will not be responsible for personal items left in the Premises, such as cable boxes, telephones and other personal items.

Residents' Forwarding Address:

Reasons for Vacating: (Optional): _____

Reference: ☐ We would like a reference from you. ☐ We would not like a reference from you.

Date Resident Date Resident

Date Resident Date Resident



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Instructions

Use of this Form:

When Resident seeks to terminate the tenancy and return possession to the Owner/Agent.

The Law

California Civil Code 1946 requires that a Resident gives the Owner/Agent thirty (30) days written notice to terminate the tenancy.

Filling Out the Form

- Insert Owner/Agent's name.
- Insert the Complete Property Address.
- Insert Reason for Terminating the Tenancy. Not required.
- Insert Resident's Forwarding Address.
- Resident and Owner/Agent sign and date the Notice.
- Make copies. Enough copies for each resident.
- Keep the Original for your file.

Notes:

1. This Notice outlines the Resident's right to a pre-move out inspection.
2. If the Resident demands a pre-move out inspection, the Owner/Agent must provide written notice of any potential deductions to the security deposit. This allows the Resident to correct any minor defects to the premises.
3. Resident waives the right to receive copies of invoices or bills if the security deposit deduction is more than \$125.
4. Owner/Agent must still comply with the Move Out/Closing Statement that must be mailed within 21 days after the Resident has vacated.

Caution: This form has been prepared by the East Bay Rental Housing Association. As with all legal notices consult with an attorney to determine whether this form is appropriate for your specific needs. Moreover consult an attorney if you require assistance in completing the form or changes to the form are necessary in your particular situation.